

CHAPTER 49.

An Act to amend the law relating to the national status of married women so far as is necessary for giving effect to a Convention on certain questions relating to the Conflict of Nationality Laws, signed on behalf of His Majesty at the Hague on the twelfth day of April, nineteen hundred and thirty, and for purposes incidental to the matter aforesaid. [17th November 1933.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Amend-
ments of
4 & 5 Geo. 5.
c. 17.

1.—(1) The following section shall be substituted for section ten of the British Nationality and Status of Aliens Act, 1914 (hereafter in this Act referred to as “the principal Act”) :—

National
status of
married
women.

“10.—(1) Subject to the provisions of this section, the wife of a British subject shall be deemed to be a British subject, and the wife of an alien shall be deemed to be an alien.

(2) Where a woman has (whether before or after the commencement of this Act) married an alien, and was at the time of her marriage a British subject, she shall not, by reason only of her marriage, be deemed to have ceased to be a British subject unless, by reason of her marriage, she acquired the nationality of her husband.

(3) Where a man has, during the continuance of his marriage, ceased (whether before or after the commencement of this Act) to be a British subject, his wife shall not, by reason only of that fact, be deemed to have ceased to be a British subject unless, by reason of the acquisition by her husband of a new nationality, she also acquired that nationality.

(4) Where a man ceases, during the continuance of his marriage, to be a British subject and, by reason of his acquisition of a new nationality, his wife also acquires that nationality, she may, whether her marriage is still continuing or not, at any time within the period of twelve months from the date on which she so acquired that nationality, or at such later time as the Secretary of State may in special circumstances allow, make a declaration that she desires to retain British nationality, and thereupon she shall be deemed to have remained a British subject.

(5) Where, after the end of the year nineteen hundred and thirty-three, a certificate of naturalisation is granted to an alien, his wife, if not already a British subject, shall not be deemed to be a British subject, unless, within the period of twelve months from the date of the certificate, or within such longer period as the Secretary of State may in special circumstances allow, she makes a declaration that she desires to acquire British nationality.

(6) Where an alien is a subject of a state at war with His Majesty, it shall be lawful for his wife, if she was at birth a British subject, to make a declaration that she desires to resume British nationality, and thereupon the Secretary of State, if he is satisfied that it is desirable that she be permitted to do so, may grant her a certificate of naturalisation."

(2) In paragraph (b) of subsection (1) of section nineteen of the principal Act (which section empowers the Secretary of State to make regulations with respect to the form and registration of declarations of resumption or retention of British nationality) there shall be inserted after the word "retention" the words "or acquisition."

2.—(1) This Act may be cited as the British Nationality and Status of Aliens Act, 1933, and the British Nationality and Status of Aliens Acts, 1914 to 1922, and this Act may be cited together as the British Nationality and Status of Aliens Acts, 1914 to 1933. Short title,
citation, and
printing.

(2) Subsection (3) of section three of the British Nationality and Status of Aliens Act, 1922, (which relates 12 & 13
Geo. 5. c. 44.

to the construction, and the printing of copies, of the principal Act) shall apply in relation to amendments made in the principal Act by this Act as it applies in relation to amendments so made by the said Act of 1922.

CHAPTER 50.

An Act to impose penalties for the use, attempted use and possession of firearms and imitation firearms in certain cases, to amend certain provisions of the Larceny Act, 1916, relating to offensive weapons or instruments, and for purposes connected with the matters aforesaid.
[17th November 1933.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

* Penalty for use or attempted use of firearms or imitation firearms to avoid arrest.

1.—(1) If any person makes or attempts to make any use whatsoever of a firearm or imitation firearm with intent to resist or prevent the lawful apprehension or detention of himself or any other person, he shall be guilty of an offence under this section, and on conviction thereof on indictment shall be liable to penal servitude for a term not exceeding fourteen years.

(2) Where any person commits an offence under this section in respect of the lawful apprehension or detention of himself for any other offence committed by him, he shall be liable to the penalty provided by this section in addition to any penalty to which he may be sentenced for that other offence.

Penalty for possession of firearms or imitation firearms in certain cases.

2.—(1) If any person, at the time of his committing, or at the time of his apprehension for, any offence to which this section applies, has in his possession any firearm or imitation firearm, he shall, unless he shows that he had it in his possession for a lawful object, be guilty of an offence under this section, and on conviction thereof on indictment shall be liable to penal servitude for a term not exceeding seven years in addition to any